

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Isabelle James	Team: Squad #09	CCRB Case #: 201705749	☐ Force ☐ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Tuesday, 11/15/2016 9:10 PM	Location of Incident: 75th Precinct Stationhouse	18 Mo. SOL 5/15/2018	Precinct: 75
Date/Time CV Reported Sun, 07/16/2017 4:22 AM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Sun, 07/16/2017 4:22 AM

Complainant/Victim	Type	Home Address
[REDACTED]	[REDACTED]	[REDACTED]

Witness(es)	Home Address
[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]

Subject Officer(s)	Shield	TaxID	Command
1. POM Sean Collins	29210	954654	075 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Chris Whitehead	25402	923056	075 PCT
2. POM Tyrone Gill	20089	947027	075 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Sean Collins	Abuse: Police Officer Sean Collins did not obtain medical treatment for § 87(2)(b) [REDACTED]	A . Unsubstantiated

Case Summary

On July 16, 2017, § 87(2)(b) filed this complaint with the CCRB via the online website.

On November 15, 2016, § 87(2)(b) was arrested inside of his girlfriend's, § 87(2)(b) apartment after a domestic dispute between § 87(2)(b) and § 87(2)(b). At 9:10 p.m., § 87(2)(b) was transported to the 75th Precinct stationhouse and processed by Police Officer Sean Collins of the 75th Precinct. Two days before the incident, § 87(2)(b) was assaulted by § 87(2)(b) son, § 87(2)(b). At the time of this incident, § 87(2)(b) had been diagnosed with a broken nose and cheek bone, causing his face to be swollen and bruised.

After § 87(2)(b) was processed at the front desk, PO Collins placed § 87(2)(b) inside a holding cell. Approximately ten to fifteen minutes after he had arrived at the stationhouse, PO Collins came over to § 87(2)(b)'s holding cell and asked § 87(2)(b) to sign a paper. § 87(2)(b) allegedly told PO Collins that he needed medical attention because he was in pain from his prior injuries. PO Collins told § 87(2)(b) again to sign the paper he was holding. § 87(2)(b) refused and allegedly asked for medical attention a second time. PO Collins then turned around and walked away without acknowledging § 87(2)(b)'s request (**Allegation A**).

An indeterminate amount of time later, PO Collins returned to § 87(2)(b)'s holding cell. PO Collins told § 87(2)(b) that he had his Miranda Rights for him to sign. § 87(2)(b) allegedly requested medical attention for a third time. PO Collins then told § 87(2)(b) that he had told his sergeant about § 87(2)(b)'s request for medical attention. PO Collins then allegedly said, "You're not going to sign the papers right?" § 87(2)(b) responded, "You're refusing me medical attention and it's against my rights." PO Collins then allegedly walked away from § 87(2)(b)'s holding cell (**Allegation A continued**).

A few hours later, a different officer, identified by the investigation to be Police Officer Jhonny Gill of the 75th Precinct, approached § 87(2)(b)'s holding cell. PO Gill asked § 87(2)(b) if he still needed EMS, and § 87(2)(b) replied that he needed to see a doctor. PO Gill then told § 87(2)(b) that he would inform his sergeant that § 87(2)(b) needed EMS. PO Gill returned to § 87(2)(b)'s holding cell approximately 15 minutes later and informed him that EMS was on their way. § 87(2)(b) was treated by EMS at the 75th Precinct stationhouse and was then removed to § 87(2)(b) in Brooklyn.

There is no video footage of this incident.

§ 87(2)(g)

Mediation, Civil and Criminal Histories

- This case is ineligible for mediation due to § 87(2)(b)'s arrest and his pending criminal charges.
- As of October 10, 2017, a Notice of Claim has not been filed in regards to this incident (**Board Review 1**).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- § 87(2)(b) has one open CCRB complaint, § 87(2)(b) [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED].
- PO Collins has been a member of the NYPD for four years and has two prior CCRB allegations pleaded against him § 87(2)(g) [REDACTED]
[REDACTED] There is currently an open CCRB complaint against PO Collins, case number 201706761, and vehicle stop and vehicle search allegations have been pleaded against him.

Potential Issues

The investigation was unable to get in contact with the other individuals listed as being in the holding cells with § 87(2)(b) on the day of the incident.

Findings and Recommendations

[illegible]

§ 87(2)(g)

Allegation A – Abuse of Authority: Police Officer Sean Collins did not obtain medical treatment for § 87(2)(b)

§ 87(2)(b) alleged that while inside the holding cells at the 75th Precinct stationhouse on November 15, 2016, he requested medical attention from PO Collins at least three times on two separate occasions. A few hours after § 87(2)(b) requested medical attention from PO Collins, PO Gill approached § 87(2)(b)'s holding cell and asked him if he still needed EMS. § 87(2)(b) replied that he did and PO Gill told § 87(2)(b) he would inform the desk sergeant. Approximately 15 minutes later, PO Gill returned to § 87(2)(b)'s holding cell and informed him that EMS was on

their way. § 87(2)(b) was then treated by EMS at the 75th Precinct stationhouse and removed to § 87(2)(b) in Brooklyn.

PO Collins testified that he did not recall if § 87(2)(b) requested medical attention from him at any point while at the 75th Precinct stationhouse. However, PO Collins recalled that he was informed by an officer that § 87(2)(b) was requesting medical attention. PO Collins did not recall which officer told him that § 87(2)(b) was requesting medical attention, and PO Collins did not recall if he or the desk sergeant called EMS. When asked how long it was after § 87(2)(b) arrived at the stationhouse to when PO Collins was informed that § 87(2)(b) was requesting medical attention, PO Collins stated he did not know but recalled it was “not hours after § 87(2)(b) was arrested.” PO Collins stated that § 87(2)(b) received medical attention not long after requesting it.

PO Whitehead did not recall this incident. He testified that he did not recall any prisoners requesting medical attention or hearing any prisoners yelling for medical attention from their cells on the day of the incident. PO Whitehead stated, however, that if a prisoner had requested medical attention, he would have immediately notified the desk sergeant, who would then have called for EMS to respond to treat the prisoner.

The 75th Precinct Command Log entries from November 15, 2016 indicated that § 87(2)(b)'s arrest was logged at 9:10 p.m. (**Board Review 4**). A note to the right of § 87(2)(b)'s arrest stamp states that he was taken to § 87(2)(b) at 2:51 a.m. on November 16, 2017.

§ 87(2)(g)
Therefore, it is recommended that **Allegation A** and **Allegation B** be closed as **unsubstantiated**.

Squad: **9**

Investigator:	_____	_____	_____
	Signature	Print	Date
Squad Leader:	_____	_____	_____
	Title/Signature	Print	Date
Reviewer:	_____	_____	_____
	Title/Signature	Print	Date